ours p.1 (red) over filed p.1 (blue)

ACCEPTED
05-20-00920-CV
FIFTH COURT OF APPEALS
DALLAS, TEXAS
1/11/2021 5:16 PM
LISA MATZ
CLERK

No. 05-20-00920-CV

Case No.: 05-20-00920-CV

IN THE COURT OF APPEALS
FOR THE FIFTH DISTRICT OF TEXAS
AT DALLAS

In the Fifth Court of Appeals for the State of Texas

IN RE: J.R.

J.R.
Appellant,

IN RE: J.R.

v.

THE STATE OF TEXAS
Appellee.

On Direct Appeal from the trial court in cause numbers JD-20-00313-X, 305th Judicial District Court, the Honorable Cheryl Lee Shannon, presiding.

On Appeal from the 305th Judicial District Court, Dallas County, Texas
Trial Court Cause No. JD-20-00313-X
The Honorable Cheryl Lee Shannon, Presiding

Appellant's Reply Brief

APPELLANT'S REPLY BRIEF

Niles Illich
Rebekah Perlstein
Scott H. Palmer, P.C.
15455 Dallas Parkway
Suite 540
Addison, Texas 75001
Direct: 972-204-5452
Facsimile: 214-922-9900
Email: Niles@scottpalmerlaw.com
Counsel for Appellant

ORAL ARGUMENT REQUESTED.

ACCELERATED APPEAL.

Niles Illich
State Bar No. 24069969
Rebekah Perlstein
State Bar No. 24073080
Scott H. Palmer, P.C.
15455 Dallas Parkway, Suite 540
Addison, Texas 75001
Telephone: 972-204-5452
Email: Niles@scottpalmerlaw.com
Counsel for Appellant

ORAL ARGUMENT REQUESTED
ACCELERATED APPEAL

TABLE OF CONTENTS

TABLE OF CONTENTS

TABLE OF AUTHORITIES
Table of Contents ii
Index of Authorities iii
First Reply Issue 1
Second Reply Issue 3
Conclusion and Prayer 7
Certificate of Compliance 6
CERTIFICATE OF COMPLIANCE 8
Certificate of Service 7
CERTIFICATE OF SERVICE 8

TABLE OF AUTHORITIES

CASES

In re D.A.D.,
No. 05-17-00294-CV, 2017 Tex. App. LEXIS 8603, 2017 WL 3976585, at *3 (Tex. App.—Dallas Sept. 11, 2017, pet. denied) 3, 4

Moon v. State,
451 S.W.3d 28, 50 (Tex. Crim. App. 2014) 3, 4, 5

INDEX OF AUTHORITIES

TABLE OF CONTENTS

TABLE OF AUTHORITIES 2

First Reply Issue 3

Second Reply Issue 5

Conclusion and Prayer 7

CERTIFICATE OF COMPLIANCE 8

CERTIFICATE OF SERVICE 8

CASES

In re D.A.D., No. 05-17-00294-CV, 2017 Tex. App. LEXIS 8603, 2017 WL 3976585 (Tex. App.—Dallas Sept. 11, 2017, pet. denied) (mem. op.) 1

Moon v. State, 451 S.W.3d 28 (Tex. Crim. App. 2014) 1, 2

STATUTES

Tex. Fam. Code § 54.02(j) 1, 2, 3, 4, 8

TABLE OF AUTHORITIES

CASES

In re D.A.D.,
No. 05-17-00294-CV, 2017 Tex. App. LEXIS 8603, 2017 WL 3976585, at *3 (Tex. App.—Dallas Sept. 11, 2017, pet. denied) 3, 4

Moon v. State,
451 S.W.3d 28, 50 (Tex. Crim. App. 2014) 3, 4, 5

ours p.4 (red) over filed p.3 (blue)

To the Honorable Justices of the Fifth Court of Appeals:

To the Honorable Justices of the Fifth Court of Appeals:

J.R., Appellant, presents this reply brief.

J.R., Appellant presents this reply brief.

First Reply Issue:

FIRST REPLY ISSUE

The kernel of the dispute between Appellant and Appellee is whether § 54.02(h) and *Moon* require the Juvenile Court to consider both the evidence in favor of waiver of jurisdiction and the evidence against waiver of jurisdiction. The answer is uncomplicated, but requires consideration of the standard of review for factual sufficiency in a civil case.

The kernel of the dispute between Appellant and Appellee is whether § 54.02(h) and *Moon* require the Juvenile Court to consider both the evidence in favor of waiver of jurisdiction and the evidence against waiver of jurisdiction. The answer is uncomplicated, but requires consideration of the standard of review for factual sufficiency in a civil case.

In a civil case, this Court reviews the factual sufficiency of the evidence under the following standard: "When reviewing the factual sufficiency of the evidence, we consider all of the evidence presented to determine if the Juvenile Court's findings are so against the great weight and preponderance of the evidence as to be clearly wrong and unjust. But, our review of the sufficiency of the evidence supporting waiver is limited to the facts the Juvenile Court expressly relied on in its transfer order." (internal citations removed). *In re D.A.D.*, No. 05-17-00294-CV, 2017 Tex. App. LEXIS 8603, 2017 WL 3976585, at *3 (Tex. App.—Dallas Sept. 11, 2017, pet. denied) (mem. op.) (citing *Moon v. State*, 451 S.W.3d 28, 50 (Tex. Crim. App. 2014)).

In a civil case, this Court reviews the factual sufficiency of the evidence under the following standard: "When reviewing the factual sufficiency of the evidence, we consider all of the evidence presented to determine if the Juvenile Court's findings are so against the great weight and preponderance of the evidence as to be clearly wrong and unjust. But, our review of the sufficiency of the evidence supporting waiver is limited to the facts the Juvenile Court expressly relied on in its transfer order." (internal citations removed). *In re D.A.D.*, No. 05-17-00294-CV, 2017 Tex. App. LEXIS 8603, 2017 WL 3976585, at *3 (Tex. App.—Dallas Sept. 11, 2017, pet. denied) (mem. op.) (citing *Moon v. State*, 451 S.W.3d 28, 50 (Tex. Crim. App. 2014)).

Thus a factual sufficiency review requires a consideration of "all of the evidence presented," but is limited to "the facts the Juvenile Court expressly relied on for its transfer order." *Id.* To honor both requirements necessitates that the

Thus a factual sufficiency review requires a consideration of "all of the evidence presented," but is limited to "the facts the Juvenile Court expressly relied on for its transfer order." *Id.* To honor both requirements necessitates that the

Juvenile Court include a deliberation of the factors that weigh in favor and against certification in the Court's § 54.02(h) order. If the Juvenile Court does not include the factors that weigh against the certification in the § 54.02(h) order, then the factors that weigh against the certification cannot be considered in a factual sufficiency review. *Id.*; *Moon v. State*, 451 S.W.3d 28, 50 (Tex. Crim. App. 2014). If the Juvenile Court was not required to include the factors that weighed against certification, and if this Court cannot now review those factors, then there is no meaningful distinction between a factual sufficiency review and a legal sufficiency review.

Here the trial court did not include any factors that weighed against certification in its opinion.

At the best, the Juvenile Court's order included the boilerplate promise that the Court made its decision after "considering all the testimony, diagnostic study, social evaluation, and full investigation." [CR 97-98]. But this indifferent assurance should not substitute for a deliberate consideration of all of the factors that weigh in favor and against certification. Indeed, in *Moon*, the Court wrote, "[t]he appellate court should *not* be made to rummage through the record for facts that the Juvenile Court might have found, given the evidence developed at the transfer hearing, but did not include in its written transfer order." (emphasis original). *Moon*, 451 S.W.3d at 50. By using the boilerplate promise that the Juvenile Court reached its decision after "considering all the testimony, diagnostic study, social evaluation, and full

study, social evaluation, and full investigation," the Juvenile Court disregarded *Moon*'s express instruction against requiring the appellate court to "rummage through the record for facts that the Juvenile Court might have found…" *Id.*

For these reasons, the § 54.02(h) order must include the factors that weigh against certification. Here the order did not include the factors that weight against certification and therefore was deficient.

SECOND REPLY ISSUE

Second Reply Issue:

As a preliminary matter it is unsettled whether this Court can look to the record as a whole for evidence that would weigh against certification. *Moon* was clear that the review should be limited to the face of the § 54.02(h) order. *Id.* at 49-50.

The problem for this Court, however, is that the § 54.02(h) order is deficient. The deficient order flagrantly leaves out all of the evidence that weighed against certification. And *Moon* limits a sufficiency review to the text of the § 54.02(h) order. If the Court relies on the boilerplate promise that the Juvenile Court reached its decision after "considering all the testimony, diagnostic study, social evaluation, and full investigation," then the Juvenile Court disregarded *Moon*'s express instruction against requiring the appellate court to "rummage through the record for facts that the Juvenile Court might have found…" *Id.*

But if this Court finds that it can rummage through the record, then the record overwhelmingly supports the conclusion that Appellant should not have been certified.

Appellee discounts the evidence that supported the conclusion that Appellant should not have been certified as an adult. But Appellee's arguments concerning [the appellant's intellectual, medical, and conduct history, omitted from this transcription] all strongly weighed against a finding that Appellant should be certified as an adult. Indeed the social evaluation (if this Court can consider evidence in the record that is outside of the § 54.02(h) order) found that Appellant "has not demonstrated the ability to live independently of adult supervision" and "is reliant on his mother and grandparents for his basic needs." All of these factors support a conclusion that Appellant should not have been certified as an adult.

Here, when this Court considers all of the evidence, the evidence conclusively shows a teenaged young man [whose medical history is omitted from this transcription], and with a lack of maturity and sophistication that manifest itself in a lack of impulse control and poor decision-making faculties. But the evidence also established that when J.R. is not given choices and his environment is structured for him that he makes very good decisions and excels. This is the mark of a lack of maturity and sophistication, but the trial court found that J.R. is "excessively" sophisticated and mature. The evidence is factually insufficient to support this finding.

Finally, the trial court abused its discretion by finding that the sophistication prong supported a finding that the Juvenile Court should waive its jurisdiction. Arguably, the sophistication prong is the most important prong and the factor that most distinguishes a criminal act by a juvenile and a criminal act by an adult. By misapplying the factor, the Juvenile Court abused its discretion and reversal is warranted.

and excels. This is the mark of a lack of maturity and sophistication, but the trial court found that J.R. is excessively sophisticated and mature. The evidence is factually insufficient to support this finding.

Finally, the trial court abused its discretion by finding that the sophistication prong supported a finding that the Juvenile Court should waive its jurisdiction. Arguably, the sophistication prong is the most important prong and the factor that most distinguishes a criminal act by a juvenile and a criminal act by an adult. By misapplying the factor, the Juvenile Court abused its discretion and reversal is warranted.

CONCLUSION AND PRAYER

J.R. asks this Court to:

- Find that the trial court abused its discretion and failed to honor either § 54.02 or *Moon* and their requirement that the Juvenile Court explain its deliberative process in a § 54.02(h) opinion;
- Find that the evidence was factually insufficient to support the findings that J.R. was sufficiently mature and sophisticated to certify and that the trial court abused its discretion in certifying J.R.;
- Vacate the certification order; and,
- Any and all other relief to which Appellant might be entitled.

Conclusion and Prayer

- Find that the trial court abused its discretion and failed to honor either § 54.02 or *Moon* and their requirement that the Juvenile Court explain its deliberative process in a § 54.02(h) opinion;
- Find that the evidence was factually insufficient to support the findings that J.R. was sufficiently mature and sophisticated to certify and that the trial court abused its discretion in certifying J.R.;
- Vacate the certification order; and,
- Any and all other relief to which Appellant might be entitled.

Respectfully submitted,

Scott H. Palmer, P.C.

/s/ Niles Illich
Niles Illich
State Bar No. 24069969

/s/ Rebekah Perlstein
Rebekah Perlstein
State Bar No. 24073080
Scott H. Palmer, P.C.
15455 Dallas Parkway, Suite 540
Addison, Texas 75001
Direct: (972) 204-5452
Facsimile: (972) 922-9900
Email: Niles@scottpalmerlaw.com
Counsel for Appellant

CERTIFICATE OF COMPLIANCE

CERTIFICATE OF COMPLIANCE

This is to certify that this brief complies with Rule 9.4 of the Texas Rules of Appellate Procedure because it is computer generated and contains 1077 words.

This is to certify that this brief complies with Rule 9.4 of the Texas Rules of Appellate Procedure because it is computer generated and includes 14,402 words as counted by the word count feature included with Microsoft Word. Appellant has not used the exception in Rule 9.4(i)(1). This brief also complies with the typeface requirements because it has been prepared in a proportionally-spaced typeface using Microsoft Word in 14-point Times New Roman font for the text and 12-point Times New Roman font for the footnotes.

/s/ Niles Illich
Niles Illich

/s/ Niles Illich
Niles Illich

CERTIFICATE OF SERVICE

This is to certify that on January 12, 2021 that a true and correct copy of this brief was served on lead counsel for all parties in accord with Rule 9.5 of the Texas

CERTIFICATE OF SERVICE

Rules of Appellate Procedure. Service was accomplished through an electronic commercial delivery service and electronic mail as follows:

This is to certify that on January 12, 2021 a true and correct copy of this

Jennifer Balido
DCDAappeals@dallascounty.org

brief was served on lead counsel for all parties in accord with Rule 9.5 of the Texas

Jessie R. Allen
Jessie.allen@dallascounty.org

Rules of Appellate Procedure. Service was accomplished through the electronic filing manager and electronic mail as follows:

/s/ Niles Illich
Niles Illich

Jennifer Balido, DCDAappeals@dallascounty.org

Jessie R. Allen, Jessie.allen@dallascounty.org

/s/ Niles Illich
Niles Illich